

31st Special Session
Sangguniang Panlungsod
City of Davao
Series of 1978

Republika ng Pilipinas
LUNGSOD NG DABAW
Tanggapan ng Sangguniang Panlungsod
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EXCERPT FROM THE MINUTES OF THE SPECIAL SESSION OF THE
SANGGUNIAN PANLUNGSOD, CITY OF DAVAO, HELD ON FRIDAY,
JULY 7, 1978.

PRESENT:

Councilor Benigno S. Bangoy, Acting
Presiding Officer, Councilors Cornelio P.
Maskariño, Antonio S. Castillo, Victorio
S. Advincula, Teodorico Tinio, Jesus Basuil,
Bonifacio Tamayo, Leonardo Isidor, Antonio
Arduo, Petronilo Singson, Fortunato Apostol,
Pedrito Gallardo, Luzmin Salvador, Benjamin
Babao, Zafiro L. Respicio, Edipolo Sarabia,
Diosdado Mahipus, Tomas Monteverde, Jr.,
Dominator B. Zuño, Jr., Valentino C. Banzon,
Adolfo S. Arguna, Tereso Cozo, Vicente Albay,
and Laki Jalaily.

ABSENT:

Mayor Luis T. Santos -
Councilors Pantaleon V. Pelayo, Jr.,
Bienvenido O. Amora, Domingo
R. Vidanes and Exequiel Reyes.

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RESOLUTION NO. 1263

Proposed Ordinance of Councilor Dominador B. Zuño,
Jr. requiring motorcycle drivers plying along City Streets
and National Highways in the City of Davao to wear crash
helmets, was presented for consideration and appropriate
action of the Body. Councilor Zuño, Jr. in recommending
the passage of the ordinance cited many cases of traffic
accidents involving motorcycle drivers who, because of
lack of helmets, suffered serious head injuries which, in
some cases, are fatal. He said that if they are required
to wear crash helmets it is for the protection of the
motorcycle drivers themselves. Councilor Edipolo Sarabia
proposed an amendment by requiring not only the drivers
but also all riders to wear crash helmets of any kind and
to impose a fine from P5.00 to P50.00 at the discretion
of the court on any person violating the provision of the
proposed ordinance.

After careful deliberation, on motion of Councilor
Dominator B. Zuño, Jr., duly seconded by Councilor Edipolo
Sarabia, it was

RESOLVED, AS IT IS HEREBY RESOLVED, To approve an
Ordinance entitled:

Continued on Page -2-

Resolution No. 1263 and Ordinance No. 737,
series of 1978, continued:

ORDINANCE NO. 737

AN ORDINANCE REQUIRING ALL MOTORCYCLE DRIVERS AND RIDERS
PLYING ALONG CITY STREETS AND NATIONAL HIGHWAYS WITHIN
THE TERRITORIAL JURISDICTION OF DAVAO CITY TO WEAR CRASH
HELMETS OF ANY KIND WHILE OPERATING SAID MOTORCYCLE AND PRO-
VIDING PENALTY FOR VIOLATION THEREOF.

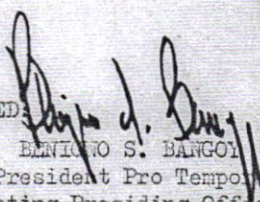
Be it Ordained by the Sangguniang Panlungsod, City of Davao,
that:

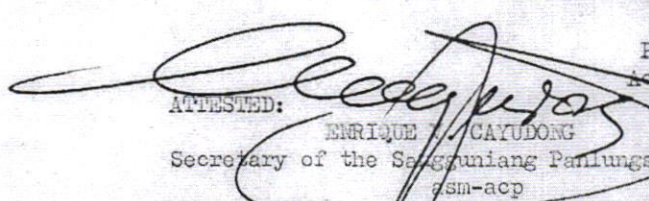
SECTION 1. - All motorcycle drivers and riders plying
along the City Streets and National Highways within the
territorial jurisdiction of Davao City are hereby required
to wear crash helmets of any kind while operating said
motorcycle.

SECTION 2. - Any person violating the provision of this
ordinance shall upon conviction be punished with a fine from
FIVE (P5.00) PESOS to FIFTY (P50.00) PESOS at the discretion
of the Court.

SECTION 3. - This Ordinance shall take effect upon
approval.

ENACTED: July 7, 1978.
CARRIED, Unanimously.

APPROVED: 
BENIGNO S. BANGOY
President Pro Tempore
Acting Presiding Officer


ATTESTED: ENRIQUE C. CAYUDONG
Secretary of the Sangguniang Panlungsod
asm-acp

APPROVED: _____, 1978

LAPSED
(DEEMED APPROVED AFTER THE LAPSE
OF 10 DAYS. SEC. 15, PAR. 2
ATTESTED: R. A. NO. 4354)

LUIS T. SANTOS
Mayor, City of Davao

VICENTE C. GARCIA, JR.
City Secretary